

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3264

By: George

AS INTRODUCED

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), which relates to minimum prison sentences; adding criminal offense to list of crimes; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1), is amended to read as follows:

Section 13.1. Persons convicted of:

1. First degree murder as provided for in Section 701.7 of this title;
2. Second degree murder as provided for in Section 701.8 of this title;
3. Manslaughter in the first degree as provided for in Section 711 of this title;

1        4.    Poisoning with intent to kill as provided for in Section 651  
2 of this title;

3        5.    Shooting with intent to kill, use of a vehicle to facilitate  
4 use of a firearm, crossbow or other weapon, assault, battery, or  
5 assault and battery with a deadly weapon or by other means likely to  
6 produce death or great bodily harm, as provided for in Section 652  
7 of this title;

8        6.    Assault with intent to kill as provided for in Section 653  
9 of this title;

10       7.    Conjoint robbery as provided for in Section 800 of this  
11 title;

12       8.    Robbery with a dangerous weapon as provided for in Section  
13 801 of this title;

14       9.    First degree robbery as provided for in Section 797 of this  
15 title;

16       10.   First degree rape as provided for in Section 1111 or 1114  
17 of this title;

18       11.   First degree arson as provided for in Section 1401 of this  
19 title;

20       12.   First degree burglary as provided for in Section 1431 of  
21 this title;

22       13.   Bombing as provided for in Section 1767.1 of this title;

23       14.   Any crime against a child as provided for in Section 843.5  
24 of this title;

- 1        15. Forcible sodomy as provided for in Section 888 of this  
2 title;
- 3        16. Child sexual abuse material or aggravated child sexual  
4 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,  
5 1024.2, or 1040.12a of this title;
- 6        17. Child sex trafficking as defined in Section 1030 of this  
7 title;
- 8        18. Lewd molestation of a child as provided for in Section 1123  
9 of this title;
- 10       19. Abuse of a vulnerable adult as defined in Section 10-103 of  
11 Title 43A of the Oklahoma Statutes;
- 12       20. Aggravated trafficking as provided for in subsection C of  
13 Section 2-415 of Title 63 of the Oklahoma Statutes;
- 14       21. Aggravated assault and battery as provided for in Section  
15 646 of this title upon any person defending another person from  
16 assault and battery;
- 17       22. Human trafficking as defined in Section 748 of this title  
18 ~~or~~;
- 19       23. Domestic abuse by strangulation as provided for in Section  
20 644 of this title; or
- 21       24. Discharging a firearm at or into a dwelling or building  
22 used for public or business purposes, as provided for in Section  
23 1289.17A of this title,
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1 or any attempt, conspiracy, or solicitation thereof, shall be  
2 required to serve not less than eighty-five percent (85%) of any  
3 sentence of imprisonment imposed by the judicial system prior to  
4 becoming eligible for consideration for parole. Persons convicted  
5 of these offenses shall not be eligible for earned credits or any  
6 other type of credits which have the effect of reducing the length  
7 of the sentence to less than eighty-five percent (85%) of the  
8 sentence imposed.

9 SECTION 2. This act shall become effective November 1, 2026.

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